

Court No. - 3

Case :- WRIT - C No. - 14787 of 2022

Petitioner :- Smt. Kudusia Begum

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Mohammad Yaseen

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the parties.

This writ petition has been filed praying for the following relief:

"i) To issue, a Writ, Order or direction in the nature of Certiorari Quashing the Impugned Recovery Citation dated 20/04/2022 issued by the Tehsildar, Tehsil Karchhana district Prayagraj in the name of Petitioner mentioning therein dues amount upon the Petitioner as 9,85,010/- plus charges (Annexure No. 14 to this Writ Petition).

ii). To issue a Writ, order or direction in the nature of Mandamus Commanding the Respondent No. 3 to decide the representation of Petitioner filed on 24/08/2021 (Annexure no. 10) pending before it expeditiously, within a period so stipulated by this Hon'ble Court.

iii). To issue a Writ, Order or direction in the nature of Mandamus Commanding the Respondents to withdraw the aforesaid Impugned Recovery Citation dated 20/04/2022 issued by the Respondent No. 6/ Tehsildar, Tehsil Karchhana district Prayagraj in the name of Petitioner and to pass a fresh final assessment order in the case of Petitioner in accordance with law after providing the proper and adequate opportunity of hearing in accordance with law after following the provisions of the Electricity Supply Code 2005 expeditiously within a period so stipulated by this Hon'ble Court.

iv). To issue a Writ order or direction in the nature of Mandamus Commanding the Respondent authorities not to take any coercive measures. against the Petitioner in pursuance to the Impugned Recovery Citation dated 20/04/2022 issued by the Tehsildar, Tehsil Karchhana district Prayagraj.

v) To Pass such other and further order or direction which this Hon'ble Court may deem fit and proper in the facts and circumstances of the case."

A perusal of the petition reveals that the petitioner, by means of Writ-C No. 27451 of 2021 (Smt. Kudusia Begum Vs. State of U.P. and 3 others) had sought quashing of the final assessment order dated 16.7.2021. However, by means of a judgement and order dated 23.10.2021, that writ petition was dismissed on account of alternative statutory remedy of filing an appeal.

In paragraph 20 of the petitioner, the petitioner has admitted that no appeal has been filed. As such, no interference is called for in the present writ petition and it is, accordingly, **dismissed**.

Order Date :- 26.5.2022

A. V. Singh